

MASTER SERVICE AGREEMENT BETWEEN NEXUS DYNAMICS LTD. AND VANGUARD INNOVATIONS CORP.

Between: **Nexus Dynamics Ltd.** (Service Provider) and **Vanguard Innovations Corp.** (Client)

Effective Date: 2024-04-11

Termination Date: 2027-04-11

Governing Law: the laws of England and Wales

1. Payment Terms

Vanguard Innovations Corp. shall pay Nexus Dynamics Ltd. a fee of Rs. 1,36,00,000 (Rupees One crore, thirty-six lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Vanguard Innovations Corp.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

2. Insurance

Nexus Dynamics Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,36,00,000 (Rupees One crore, thirty-six lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,36,00,000 (Rupees One crore, thirty-six lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Nexus Dynamics Ltd. shall provide evidence of such insurance upon request.

3. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

4. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,36,00,000 (Rupees One crore, thirty-six lakh Only). This limitation does not apply to obligations arising from Clause 3 or indemnification obligations.

5. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of England and Wales. Subject to Clause 2, the courts of Hyderabad shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

6. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this service agreement Agreement dated 2024-04-11 between Nexus Dynamics Ltd. and Vanguard Innovations Corp.. "Services" means the services described in Clause 292. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

7. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

8. Indemnification

Nexus Dynamics Ltd. shall indemnify, defend, and hold harmless Vanguard Innovations Corp. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Nexus Dynamics Ltd.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

9. Scope of Services

Nexus Dynamics Ltd. shall provide to Vanguard Innovations Corp. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

10. Term

This Agreement shall commence on the Effective Date, 2024-04-11, and shall continue until 2027-04-11, unless earlier terminated in accordance with Clause 3. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

11. Subcontracting

Nexus Dynamics Ltd. shall not subcontract any material part of the Services without the prior written consent of Vanguard Innovations Corp.. Where subcontracting is permitted, Nexus Dynamics Ltd. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 9 and Clause 2.

12. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

13. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

14. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

15. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

16. Audit Rights

Vanguard Innovations Corp. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Nexus Dynamics Ltd.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Nexus Dynamics Ltd.'s operations. The cost of the audit shall be borne by Vanguard Innovations Corp., unless the audit reveals an overcharge of more than five percent (5%), in which case Nexus Dynamics Ltd. shall bear the cost.

17. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

18. Intellectual Property

All intellectual property rights in deliverables created specifically for Vanguard Innovations Corp. under this Agreement shall vest in Vanguard Innovations Corp. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Nexus Dynamics Ltd. grants Vanguard Innovations Corp. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Vanguard Innovations Corp.'s internal business purposes.

IN WITNESS WHEREOF

Service Provider

Nexus Dynamics Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Client

Vanguard Innovations Corp.

Signature: _____

Name: _____

Title: _____

Date: _____